

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

=====X
MICHAEL LOUISON,

Plaintiff,

-against-

THE CITY OF NEW YORK and "JOHN DOES" #1-
8, the names being fictitious but whom are intended to
be the NYPD Police Officers who arrested plaintiff on
April 7, 2019,

Defendants.
=====X

SUMMONS

Filed On:

Index No.:

Plaintiff Designates Kings County as
the Place of Trial

Basis of Venue is the County in which
the Cause of Action Arose

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not entered with this summons, to serve a notice of appearance, on the plaintiff's attorney, within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
November 20, 2019

DAVID J. HERNANDEZ & ASSOCIATES


By: David A. Bonilla

Attorneys for Plaintiff

MICHAEL LOUISON

26 Court Street – Suite 2707

Brooklyn, NY 11242

(718) 522-0009

Defendants Addresses:

THE CITY OF NEW YORK
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
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MICHAEL LOUISON,

Plaintiff,

-against-

THE CITY OF NEW YORK and "JOHN DOES" #1-8,
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Defendants.
=====X**VERIFIED COMPLAINT**

Index No.:

Plaintiff, **MICHAEL LOUISON**, by his attorneys, **DAVID J. HERNANDEZ & ASSOCIATES**, complaining of the Defendant alleges as follows:

PARTIES

1. That at all times hereinafter mentioned, plaintiff, **MICHAEL LOUISON**, was and still is a resident of the County of Kings , City and State of New York.
2. That at all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK** (hereinafter "**CITY**"), was and still is a municipal corporation duly created and existing under and by virtue of the laws of the State of New York, with its principal place of business situated in the County and State of New York.
3. That at all times hereinafter mentioned, defendant, **CITY** operated, maintained, managed and controlled **THE NEW YORK CITY POLICE DEPARTMENT** (hereinafter referred to as "**NYPD**").
4. That at all times hereinafter mentioned, defendant NYPD was and still is an agency, instrumentality, department and/or governmental corporation under the direction and control of the defendant, **CITY**.

5. That at all times hereinafter mentioned, defendants, OFFICER “**JOHN DOES**” #1-8 the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, and were employed by and acting pursuant to their authority given to them by the defendants the **CITY** as police officers.

6. That at all times hereinafter mentioned, defendants, OFFICER “**JOHN DOES**” #1-8 the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, were acting within the scope of their employment as police officers employed by the NYPD.

7. That at all times hereinafter mentioned, defendants, OFFICER “**JOHN DOES**” #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, were acting under color of law and authority as police officers employed by the NYPD.

8. That at all times hereinafter mentioned, defendants, Officers “**JOHN DOES**” #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, arrested the plaintiff on April 7, 2019.

9. That within (90) days after plaintiff’s claim arose against **CITY**, a Notice of Claim was served on defendant, **CITY**, in accordance with General Municipal Law 50(e).). (Annexed hereto as Exhibit "1" is a copy of the Notice of Claim).

10. That the plaintiff appeared for his 50-h hearing on September 10, 2019.

11. That the Comptroller of City of New York has wholly neglected and refused to make an adjustment or payment of claim for more than thirty days after its presentation.

12. That this action was commenced within one year and ninety days after the cause of action accrued.

AS AND FOR A FIRST CAUSE OF ACTION FOR UNLAWFUL ARREST AND
IMPRISONMENT

13. That on April 7, 2019, approximately between the hours of 9:00 P.M. and 10:00 P.M., the plaintiff, MICHAEL LOUISON, was lawfully and properly walking passed the premises known as 10-14 Cortelyou Road, County of Kings, City and State of New York, when defendant, **CITY**, through its agents, servants, employees, including “**JOHN DOES**” #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, unlawfully detained, arrested, imprisoned and removed plaintiff.

14. That the arrest of plaintiff on April 7, 2019 was unlawful.

15. That plaintiff was conscious of his confinement.

16. That plaintiff did not consent to his confinement.

17. The Plaintiff had not committed or attempted to commit any illegal acts(s).

18. The Plaintiff had not given defendants, **THE CITY** and the **NYPD**, its agents, servants and/or employees, including “**JOHN DOES**” #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, probable cause to believe that he had committed any illegal acts.

19. That the aforesaid arrest and imprisonment was malicious, unlawful, and not based upon a proper warrant, probable cause or legal cause, excuse or justification to seize the person and/or property of the plaintiff, and was therefore an unlawful arrest and detainment.

20. That defendant **CITY**, through its agents, servants and/or employees, including defendants “**JOHN DOES**” #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, acted, in bad faith and without probable cause in committing the aforesaid arrest and imprisonment of plaintiff.

21. At the time of his unlawful arrest and imprisonment, plaintiff had not committed or attempted to commit any illegal acts.

22. At the time of plaintiff's unlawful arrest, detainment and/or imprisonment, defendants knew or should have known, through exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and without probable cause.

23. The aforesaid false arrest and imprisonment cause plaintiff to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses, and damage to his reputation.

24. That by reason of the foregoing, plaintiff has been damaged in the amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR ASSAULT

25. **MICHAEL LOUISON** incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

26. On April 7, 2019, approximately between the hours of 9:00 P.M. and 10:00 P.M., the plaintiff, **MICHAEL LOUISON**, was lawfully and properly walking past the premises known as 10-14 Cortelyou Road, County of Kings, City and State of New York.

27. On said date and time, plaintiff was walking on the sidewalk, when officers of the NYPD from the 70th precinct without any justification or probable cause assaulted the plaintiff on and about the head, face, knees and back, threw him onto the ground, handcuffed him, and falsely arrested him.

28. As a result of the excessive and unnecessary physical force and unauthorized contact with the body of the plaintiff during the course of the arrest, plaintiff was caused to sustain

serious personal injuries.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING

29. **MICHAEL LOUISON** incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. The actions of defendants **CITY**, through its agents, servants and/or employees, including **"JOHN DOES" #1-8**, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, heretofore described herein constituted negligence in that defendants **CITY** were negligent in failing to exercise the proper degree of care and caution so as to prevent the occurrence complained of herein; and in other ways acting in a reckless, careless, negligent and hazardous manner.

31. That defendants **CITY**, their agents, servants and/or employees were negligent, careless and reckless in failing to properly screen and investigate personnel before hiring, in that they negligently and improperly retained defendants, **"JOHN DOES" #1-8**, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019; in that they failed and neglected to provide proper and adequate supervision of its agents, servants and/or employees who aided in the unlawful arrest of plaintiff on April 7, 2019; in that they caused, permitted and allowed plaintiff to be falsely arrested; and in that they failed to take reasonable and prudent measures to prevent such occurrences as herein complained of from taking place.

32. That plaintiff's injuries were caused solely and wholly by the negligence of the defendants herein, without any negligence on the part of the plaintiff contributing thereto;

33. That by reason of the foregoing, the plaintiff was caused to suffer extreme emotional distress and trauma, was incapacitated from his usual duties and vocations for an

extended period of time and since some of his injuries are believed to be permanent and lasting in their effects, he will continue to suffer similar mental distress and damages in the future;

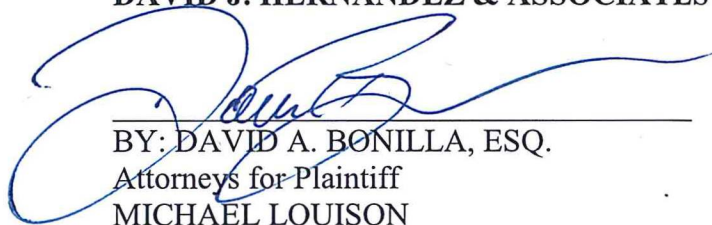
34. That by reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction;

35. The case falls within CPLR § 1602(2) and (7) so that defendants herein are jointly and severally liable to the plaintiff herein.

WHEREFORE, plaintiff demands judgment as against defendants **THE CITY OF NEW YORK** and "**JOHN DOES**" #1-8, the names being fictitious but whom are intended to be the NYPD Police Officers who arrested plaintiff on April 7, 2019, in favor of the plaintiff, **MICHAEL LOUISON**, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with costs and disbursements of this action.

Dated: Brooklyn, New York
November 20, 2019

DAVID J. HERNANDEZ & ASSOCIATES



BY: DAVID A. BONILLA, ESQ.

Attorneys for Plaintiff

MICHAEL LOUISON

26 Court Street – Suite 2707

Brooklyn, New York 11242

T: (718) 522-0009

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
 : ss.:
 COUNTY OF KINGS)

Michael Louison, being duly sworn, deposes and says:

That deponent is the Plaintiff in the within action; and that he has read the foregoing _____
Summons & Complaint and knows the contents thereof; that the same is
 true to deponent's own knowledge, except as to the matters therein stated to be alleged on
 information and belief, and that as to those matters deponent believes it to be true.

Michael Louison

Sworn to before me this
27 day of November, 2019

[Signature]
 Notary Public

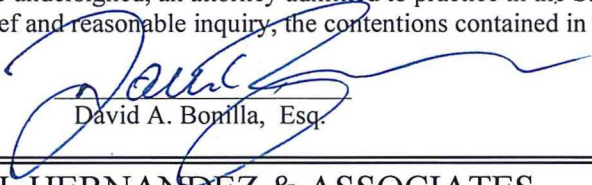
DAVID A. BONILLA
 Notary Public, State of New York
 No. 02BO6354857
 Qualified in Queens County
 Commission Expires February 21, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.**MICHAEL LOUISON****Plaintiff,****-against-****THE CITY OF NEW YORK and "JOHN DOES" #1-8, the names being fictitious but whom are intended to be the NYPD police officers who arrested plaintiff on April 7, 2019****Defendants.**

SUMMONS AND COMPLAINT

Pursuant to NYCRR Rule 130-1.1-a, the undersigned, an attorney admitted to practice in the State of New York certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed paper(s) are not frivolous.


David A. Bonilla, Esq.

DAVID J. HERNANDEZ & ASSOCIATES

Attorneys for Petitioners*Office and Post Office Address, Telephone***26 Court Street, Suite 2707****Brooklyn, NY 11242****(718) 522-0009**

Dated: Brooklyn, New York
November 20, 2019

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